



Republika ng Pilipinas
KAGAWARAN NG KATARUNGAN
Department of Justice
Manila



DEPARTMENT CIRCULAR NO. **028**

TO : ALL CONCERNED

SUBJECT : THE 2024 DEPARTMENT OF JUSTICE – NATIONAL PROSECUTION SERVICE (DOJ-NPS) RULES ON SUMMARY INVESTIGATION AND EXPEDITED PRELIMINARY INVESTIGATION

DATE : NOV 13 2024

In consonance with Department Circular No. 015 (DC 15) dated 16 July 2024 and pursuant to the mandate and policy reforms of the Department, and in furtherance of its executive function to investigate the commission of crimes or offenses, and prosecute offenders with due regard to existing laws, rules and regulations, the following rules are hereby adopted:

RULE I
TITLE, SCOPE, AND POLICIES

Section 1. Title. These Rules shall be referred to as the "2024 DOJ-NPS Rules on Summary Investigation and Expedited Preliminary Investigation."

Section 2. Scope. These Rules shall govern the conduct of investigation of crimes or offenses in the National Prosecution Service of the Department of Justice where the penalty prescribed by law is one (1) day to six (6) years, fine regardless of the amount, or both.

Section 3. Policies. These Rules shall be consistent with the policy of the Department to file an information in court only when *prima facie* evidence with reasonable certainty of conviction is established. It institutionalized the following policies:

- (a) The executive and inquisitorial nature of the conduct of summary investigation and expedited preliminary investigation;
- (b) The pro-active role of prosecutors in the investigation of crimes or offenses; and
- (c) The adoption of procedures for e-filing, as well as the conduct of virtual summary investigation and expedited preliminary investigation hearings, as alternatives.

RULE II
QUANTUM OF EVIDENCE

Section 4. Quantum of Evidence. The quantum of evidence for summary

investigation and expedited preliminary investigation shall be the same as that required under DC 15 - *prima facie* evidence with reasonable certainty of conviction.

RULE III AUTHORITY TO CONDUCT SUMMARY INVESTIGATION and EXPEDITED PRELIMINARY INVESTIGATION

Section 5. All prosecutors, including prosecution attorneys, mentioned under R.A. No. 10071, and other officers as may be allowed by law, are authorized to conduct summary investigation and expedited preliminary investigation.

State prosecutors or prosecutors assigned at the Office of the Secretary of Justice Prosecution Staff shall have jurisdiction over all crimes or offenses committed within the territorial jurisdiction of the Philippines, including but not limited to those involving national security, all criminal cases for which task forces have been created, and all criminal cases in which the venues were transferred to avoid a miscarriage of justice, or when so directed by the Secretary of Justice as public interest may require.

The city, provincial, or regional prosecutors and their assistants shall have jurisdiction over crimes or offenses, and violations of ordinances, cognizable by the proper courts in their respective territorial jurisdictions.

RULE IV SUMMARY INVESTIGATION

Section 6. Summary Investigation is an *ex parte* proceeding to determine whether a person should be indicted in court after ascertaining, based on the evidence provided, that there is *prima facie* evidence with reasonable certainty for the respondent's conviction and that he/she should be held for trial. This shall be required for crimes or offenses where the penalty prescribed by law is one (1) day to one (1) year, fine regardless of the amount, or both.¹

Section 7. Procedure. The following procedure shall be observed in the conduct of summary investigation:

- (a) The summary investigation is initiated by the filing with the prosecution office, the original complaint-affidavit with two (2) duplicate copies for official file and such number of copies as there are respondents. Each complaint-affidavit shall be accompanied by a duly-accomplished NPS Investigation Data Form (IDF).

The complaint-affidavit shall state, among others, the names and addresses of the parties, the date and place where the alleged crime or offense or violation of the ordinance was committed, and a statement of the facts of how the crime or offense or violation of the ordinance was committed. It shall be accompanied by the affidavits of his/her witnesses, as well as other supporting evidence to establish a *prima facie* evidence with reasonable certainty of conviction.

¹ Annex "A".



- (b) Upon receipt of the complaint-affidavit, the same shall be docketed, and the head of the prosecution office or his/her authorized prosecutor shall assign the case to the investigating prosecutor for resolution.
- (c) Immediately upon receipt of the entire records by the investigating prosecutor, he/she shall recommend to the head of the prosecution office the dismissal of the complaint-affidavit if he/she finds no *prima facie* evidence with reasonable certainty of conviction to charge the respondent; otherwise, he/she shall prepare the corresponding information and recommend its filing with the appropriate court.

RULE V EXPEDITED PRELIMINARY INVESTIGATION

Section 8. Expedited Preliminary Investigation is a proceeding to determine whether a person should be indicted in court after ascertaining, based on the evidence provided, and if necessary, after Case Build-Up (CBU), that there is *prima facie* evidence with reasonable certainty for the respondent's conviction and that he/she should be held for trial. This shall be required for crimes or offenses where the penalty prescribed by law is one (1) year and one (1) day to six (6) years without regard to fine, or both imprisonment and fine, if exclusively falling within the jurisdiction of first level courts such as Metropolitan Trial Courts, Municipal Trial Courts, and Municipal Circuit Trial Courts; provided that, if the cases are by law cognizable by the Regional Trial Courts, they shall be subjected to regular preliminary investigation or inquest proceedings.²

Section 9. Procedure. The following procedure shall be observed in the conduct of expedited preliminary investigation:

- (a) Expedited preliminary investigation is initiated by the filing with the prosecution office, the original complaint-affidavit with two (2) duplicate copies for official file and such number of copies as there are respondents. Each complaint-affidavit shall be accompanied by a duly-accomplished NPS Investigation Data Form (IDF) under oath.

The complaint-affidavit shall state, among others, the names and addresses of the parties, the date and place where the alleged crime or offense was committed, and a statement of the facts of how the crime or offense was committed. It shall be accompanied by the affidavits of witnesses, as well as other supporting evidence to establish a *prima facie* evidence with reasonable certainty of conviction.

- (b) Upon receipt of a complaint-affidavit by the prosecution office, the designated assisting prosecutor shall evaluate its sufficiency in form and the completeness of the evidence within three (3) calendar days.
 - (i) If the complaint-affidavit is sufficient in form and the evidence is complete, it shall be docketed and assigned to an investigating prosecutor who shall resolve the same, or issue subpoena to conduct expedited preliminary investigation according to paragraph (d) of this Section, if necessary.

² Annex "B".



- (ii) In the following instances, the designated assisting prosecutor shall conduct CBU which must be completed within twenty (20) calendar days from evaluation:
 - a. If the complaint-affidavit is insufficient in form and the evidence is complete;
 - b. If sufficient in form but the evidence is incomplete; or
 - c. If insufficient in form and the evidence is incomplete.
 - (c) If after the conduct of CBU, the complainant or LEA completes the form of the complaint-affidavit and submits the required evidence, the procedure in Section 9(b)(i) of this Circular shall be followed; otherwise, the designated assisting prosecutor shall order that the case closed and terminated.
 - (d) To conduct expedited preliminary investigation, the investigating prosecutor shall, within five (5) calendar days from receipt of the entire records of the case, issue the corresponding subpoena to the parties to appear before him/her for the hearing. The subpoena shall set the date, time, and place of appearance for the hearing, which shall not exceed fifteen (15) calendar days from the investigating prosecutor's receipt of the entire case records. The subpoena shall likewise include the complaint-affidavit and its attachments and shall direct the respondent to submit his/her counter-affidavit and/or affidavit of his/her witnesses on the date set for the purpose.
- Section 10(d) of DC 15 on voluminous records shall apply, except that the period to secure copies of the records shall be set not less than five (5) calendar days prior to the hearing.
- (e) No reply-affidavit or rejoinder-affidavit shall be entertained. However, the investigating prosecutor may conduct a clarificatory hearing within five (5) calendar days from submission of counter-affidavit if there are facts and/or issues that need clarification from a party or a witness.

Section 10. Virtual Expedited Preliminary Investigation. The procedure under DC 15 on virtual preliminary investigation shall apply to expedited preliminary investigation, except that the period to submit a counter-affidavit under the last paragraph of Section 11 (6) thereof shall not exceed five (5) calendar days.

RULE VI PROHIBITED PLEADINGS

Section 11. Prohibited pleadings and motions. The following pleadings, motions, or petitions are prohibited for both Summary Investigations and Expedited Preliminary Investigations:

- (a) Motion to dismiss the complaint or to quash the complaint or information except on the ground of lack of jurisdiction over the subject matter;
- (b) Motion for bill of particulars;
- (c) Motion for extension of time to file pleadings, affidavits, or any other submissions;
- (d) Memoranda; and
- (e) Dilatory motions for postponement.



Consistent with existing policy of the judiciary prohibiting the filing of petitions for certiorari, prohibition, and mandamus against interlocutory orders in cases subject of expedited proceedings, similar orders or findings of prosecution offices in cases subject of Summary Investigation and of Expedited Preliminary Investigation under these Rules shall not be the subject of any petition for certiorari under Rule 65 of the Rules of Court.

RULE VII DISPOSITION OF CASES

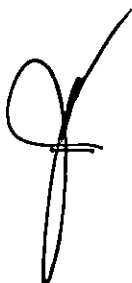
Section 12. Resolution; Information; Disposition; and Recommendations.

The relevant provisions of Sections 15 and 16 of DC 15 shall apply to both Summary Investigation and Expedited Preliminary Investigation.

The certification of the prosecutor in the information shall be under oath and shall include the following:

- (a) For summary investigation and expedited preliminary investigation where the investigating prosecutor immediately resolves the case, that:
 - (i) he/she personally examined the complaint-affidavit and the attached evidence;
 - (ii) there is *prima facie* evidence with reasonable certainty of conviction of the accused when the case is tried in court based on testimonial, documentary, real/object, and other available evidence on hand; and
 - (iii) the filing of the information is with the prior authority of the Prosecutor General, City, or Provincial Prosecutor, or their authorized prosecutors.
- (b) For expedited preliminary investigation:
 - (i) Where the investigating prosecutor issues subpoena and respondent files counter-affidavit, that:
 - (a) he/she personally examined the complainant and his/her witness/es;
 - (b) respondent filed his counter-affidavit and was given an opportunity to submit controverting evidence;
 - (c) there is *prima facie* evidence with reasonable certainty of conviction of the accused when the case is tried in court based on testimonial, documentary, real/object, and other available evidence on hand; and
 - (d) the filing of the information is with the prior authority of the Prosecutor General, City, or Provincial Prosecutor, or their duly authorized prosecutors.
 - (ii) Where the investigating prosecutor issues subpoena and respondent fails to file counter-affidavit, that:
 - (a) he/she personally examined the complainant and his/her witness/es;
 - (b) respondent was given an opportunity to submit controverting evidence but failed to do so;
 - (c) there is *prima facie* evidence with reasonable certainty of conviction of the accused when the case is tried in court based on testimonial, documentary, real/object, and other available evidence on hand; and
 - (d) the filing of the information is with the prior authority of the Prosecutor General, City, or Provincial Prosecutor, or their duly authorized prosecutors.

The resolution and information shall be approved by the Prosecutor General, City/Provincial Prosecutor, or their duly authorized prosecutors.



The information filed in court shall be accompanied by the resolution on the case, the complaint-affidavit, counter-affidavits, affidavit/s of witnesses, and all other relevant evidence.

Section 13. Period to Resolve Cases. Investigating prosecutors shall, upon receipt of the entire records of complaints covered by summary investigation, immediately resolve the same.

On the other hand, for cases covered by expedited preliminary investigation, and after CBU and docketing, the investigating prosecutor shall resolve them within the period of twenty (20) calendar days from receipt of the entire case records.

The recommendatory resolution and information shall be acted upon by the Prosecutor General, City/Provincial Prosecutor, or their duly authorized prosecutors, within five (5) calendar days from their receipt.

RULE VIII MOTION FOR RECONSIDERATION

Section 14. Motion for Reconsideration. In expedited preliminary investigation cases, the aggrieved party may file a motion for reconsideration not later than ten (10) calendar days from receipt of the resolution. No motion for reconsideration shall be entertained in cases subject to summary investigation.

RULE IX EFFECTIVITY, REPEALING CLAUSE, and CONSTRUCTION

Section 15. Effectivity. These Rules shall take effect after fifteen (15) calendar days from publication in the Official Gazette or two (2) newspapers of general circulation and shall remain in full force and effect until otherwise revoked.

Section 16. Repealing Clause. These Rules shall repeal all inconsistent rules and orders previously issued by the Department.

Section 17. Construction. These Rules shall be construed in harmony with other rules and orders of this Department in so far as they are applicable and consistent herewith.

The Rules of Court shall apply in a suppletory character whenever practicable.

JESUS CRISPIN C. REMULLA

Secretary

Department of Justice

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